

with an intention to secure the appointment of men well versed in legal science: "on this principle the steward of a court-leet must be a learned steward."¹ The clause of Magna Carta, however, refers to royal nominees, not to the officers appointed by mesne lords to preside over their feudal courts. The barons appointed their own stewards and bailiffs, and had no wish to hamper their own freedom of choice; but only that of the King. Further, the barons did not desire that John should employ men steeped in legal lore, but plain Englishmen with a rough-and-ready knowledge of insular usage, who would avoid arbitrary acts condemned by the law. The barons at Runnymede desired precisely what the council of St. Albans had desired on 4th August, 1213, when it issued formal writs to sheriffs and foresters to observe the laws of Henry I. and abstain from unjust exactions;² and these laws of Henry were but the laws of Edward Confessor (or, in reality, of Canute) slightly amended.

The attitude of John's barons was the same as that of Henry's barons, when the latter declared, in 1234, in emphatic terms, that they did not wish the laws of England to be changed.³ They were far from desiring to be governed by ministers deeply versed in the science and literature of jurisprudence, since these would necessarily have been churchmen and civilians.

This well-meaning provision of Magna Carta disappeared in 1216 (without any comment in the so-called "respite clause"). Even if it had remained intact, it would not have effected much, in the absence of adequate machinery to ensure its enforcement. In promising the appointment of such ministers as knew the law and meant to keep it, John remained sole judge of the men appointed and their intentions. The clause indicated no standard of fitness, no neutral arbitrator to decide between fit and unfit,⁴ and no

¹ *Const. Hist.*, I. 578 n.

² Cf. *supra*, p. 28.

³ "*Nolunt leges Anglie mutare que usitate sunt et approbate.*" See Statute of Merton, c. 9.

⁴ It would have been a notable anticipation of modern constitutional theory if the barons in 1215 had referred such questions to the decision of the *Commune Concilium* summoned as in c. 14 (q.v.).